

Page No.# 1/12 vs The Union Of India And 6 Ors on 8 August, 2025

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GAHC010140022017

2025:GAU-AS:10447

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : WP(C)/5447/2017

SMT. ANANYA DEY and ANR.
D/O. LT. KAJAL CHANDRA DEY @ KAJAL DEY, R/O. WEST BHASKAR
NAGAR, 5TH BYE LANE, SANTIPATH, HOUSE NO. 54, GHY.-18.

2: SMTI. ANITA DEY

W/O. LT. KAJAL CHANDRA DEY ALIAS KAJAL DEY
R/O. WEST BHASKAR NAGAR
5TH BYE LANE
SANTIPATH
HOUSE NO. 54
GUWAHATI-18

VERSUS

THE UNION OF INDIA and 6 ORS.
REP. BY THE SECRETARY TO THE GOVT. OF INDIA, MINISTRY OF HOME
AFFAIRS, WEST BLOCK-1, R.K. PURAM, NEW DELHI-110066.

2:AIR FORCE RECORD OFFICE

REP. BY THE WING COMMANDER
SUBROTO PARK
NEW DELHI-110010.

3:THE DIRECTORATE OF AIR VETERANS

SUBROTO PARK
NEW DELHI-110010.

4:THE WING COMMANDER

SUBROTO PARK
NEW DELHI-110010.

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5:THE HEAD
ZILA SAINIK BOARD
KAMRUP

GUWAHATI
ASSAM.

6:THE PUNJAB NATIONAL BANK

REPRESENTED BY THE GENERAL MANAGER
PAN BAZAR
GUWAHATI-781001.

7.1:(i) SHRI SAGAR DEY
SON OF LATE KAJAL CHANDRA DEY KAJAL DEY VILL AND P.O-
DEBINAGAR
P.S- RAIGANJ
DIST- NORTH DINAJPUR
WEST BENGAL
PIN-733123.

7.2:(ii) SHRI SHUBHAM DEY
SON OF LATE KAJAL CHANDRA DEY KAJAL DEY VILL AND P.O-
DEBINAGAR
P.S- RAIGANJ
DIST- NORTH DINAJPUR
WEST BENGAL
PIN-733123

Advocate for the Petitioner : MR.P K DEKA, MR. D DOLEY,MR.A NATH

Advocate for the Respondent : C.G.C., ASSTT.S.G.I.,MRS.R DEVI

Page No.# 3/12 :::BEFORE:::

HON'BLE MR. JUSTICE N. UNNI KRISHNAN NAIR Date of hearing : 08.08.2025
Date of Judgment: 08.08.2025 Judgment & order(Oral) Heard Mr. P.K. Deka,
learned counsel for the petitioners. Also heard Ms. R. Devi, learned C.G.C, appearing
for the respondent nos.1 to 5 and Mr. S. Dutta, learned senior counsel, assisted by
Ms. K. Borah, learned counsel, appearing for the respondent no.8. None has
appeared for the respondent nos.7(i) and 7(ii).

2. The petitioners in the present proceedings have prayed for the authorization of the family pension and other pensionary benefits in respect of the services rendered by their father/husband, late Kajal Chandra Dey@Kajal Dey, with the Indian Air Force, and thereafter with the Punjab National Bank, Guwahati.

3. The facts in brief requisite for adjudication of the present case is noticed as under;

Kajal Chandra Dey, was an employee of the Indian Air Force and had retired from his services, therefrom, on 28.02.1985. Thereafter in the month of March, 1986 he had joined as a clerk with the Punjab National Bank, Guwahati(respondent no.6), and had continued in his services therein till 26.01.2001. It is projected in the writ petition that the said Kajal Chandra Dey, had married one Eti Dey on 24.09.1979, and after she had gone missing, said Kajal Chandra Dey had married Smti. Shila Dey, the original respondent no.7 in the present proceedings, on 04.12.1988. Out of the wedlock of said Kajal Chandra Dey and Smti. Shila Dey, two sons, Page No.# 4/12 namely, Sagar Dey and Subham Dey i.e. the respondent nos.7(i) and & 7(ii) were born. It is also projected that said Shila Dey had left the residence of Kajal Chandra Dey in 1993. On being deserted by Shila Dey, said Kajal Chandra Dey had instituted FC (Civil).No.88/1999, praying for grant of divorce from Shila Dey. Shila Dey in the said proceeding had filed a petition, being petition no.576/1999 on 15.09.1999, praying for grant to her of pendentlite maintenance, which was granted by the Court. It is at this juncture that the petitioner no.2 contends that Kajal Chandra Dey had solemnized marriage with her on 02.03.1995 as per Hindu rites and rituals and out of the said wedlock the petitioner no.1, herein, was born in 22.01.1997. Kajal Chandra Dey, in the year 2001 had gone missing while travelling from Hyderabad to Guwahati, and accordingly, police cases came to be registered in this connection.

4. The petitioners contend in the month of 2015, they had received a death certificate of late Kajal Chandra Dey, from his brother Pralay Kanti Dey. Having come to learn that Shila Dey by projecting herself to be the wife of deceased Kajal Chandra Dey, had by producing a fake death certificate, in collusion with Pralay Kanti Dey was trying to withdraw the retirement dues of Late Kajal Chandra Dey, the petitioner no.1 had lodged an FIR before the Fatashil Ambari Police Station. The said FIR was registered as Fatashil Ambari Police Station Case No.814/2015 under Sections 417/420 of IPC. However, the said proceedings in the said Police Case was under stay in a criminal petition filed before this Court by the respondent no.7 and said Pralay Kanti Dey.

5. The petitioners further project that the Shila Dey, the original respondent no.7, herein, had instituted Title Suit No.368/2008, praying for a declaration that her husband late Kajal Chandra Dey was missing for last Page No.# 5/12 7(seven) years and accordingly, he be declared to be dead by drawing a presumption under Section 108 of the Evidence Act. The Trial Court vide judgment and order dated 07.04.2011 passed a declaratory decree to the effect that Kajal Chandra Dey had since passed away. It was further projected that basing on the said declaratory decree, Shila Dey had drawn the pension and pensionary benefits available on account of the services rendered by Kajal Chandra Dey.

6. The petitioners contend that being the respective heirs of Kajal Chandra Dey, they had initiated steps for being authorized family pension and other pensionary benefits. It is also projected in the writ petition that as on the date of filing of the writ petition the petitioner no.1 had not attained the age of 25 years and was unmarried and accordingly, she was entitled to the family pension in respect of the services rendered by her father late Kajal Chandra Dey. The respondent authorities having not considered the grievance of the petitioners herein, they have instituted the present proceedings.

7. Mr. P.K. Deka, learned counsel for the petitioner by reiterating the facts noticed hereinabove, has submitted that the petitioner no.2, being the wife of late Kajal Chandra Dey and petitioner no.1 being their daughter, the petitioners are entitled to be authorized family pension in respect of the services rendered by late Kajal Chandra Dey with the Indian Air Force and subsequently with the Punjab National Bank. Mr. P.K. Deka, has submitted that even if it is held that the marriage between Kajal Chandra Dey and petitioner no.2 is not valid in terms of the Hindu Marriage Act, 1955, the petitioner no.1, even if, held to be a illegitimate daughter, she would be entitled to pension and pensionary benefits.

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8. In support of his such submission, Mr. P.K. Deka, has placed reliance on Section 16 of the Hindu Marriage Act, 1955, which mandates that a children born out of void and voidable marriages to be a legitimate child. Further, he has placed reliance on the decision of the Hon'ble Supreme Court rendered in the case of Rameshwari Devi Vs. State of Bihar and Others, reported in AIR (2000) SC 735.

9. Mr. P.K. Deka, has further submitted that the original respondent no.7 i.e Shila Dey, by committing fraud, had obtained a declaratory decree from the Trial Court and basing thereon, she has drawn the family pension and other pensionary benefits from the respondents with regard to the services of late Kajal Chandra Dey. Mr. P.K. Deka, has further submitted that the petitioners being the Next Of Kin of late Kajal Chandra Dey, there exist no bar in the respondent authorities releasing to them their due family pension and other pensionary benefits.

10. Per Contra, Ms. M. Devi, learned C.G. C, appearing for the respondent nos.1 to 5, has submitted that in the service record of Kajal Chandra Dey, the name of his wife has been recorded as Smti. Eti Datta, however, original respondent no.7, herein, Shila Dey, having approached the authorities claiming to be the legally wedded wife of late Kajal Chandra Dey and she having produced a declaratory decree issued by the Court of Munsiff no.3, Kamrup, Guwahati, drawing presumption, with regard to the death of late Kajal Chandra Dey, her name came to be recorded as the Next Of Kin in the service records of late Kajal Chandra Dey and subsequently family pension was sanctioned to her w.e.f 18.02.2001.

11. Ms. R. Devi, has submitted that in the service records of the petitioners maintained by the respondents represented by her, there is no Page No.# 7/12 reference of late Kajal Chandra Dey, solemnizing marriage with the petitioner no.2, herein, and of the petitioner no.1 being born out of the said wedlock. Accordingly, she submits that the petitioner no.2 cannot be deemed to be the wife of late Kajal Chandra Dey and accordingly, the lineage sought to be drawn by the petitioner no.1 through the petitioner no.2 to Kajal Chandra Dey would not mandate an acceptance by this Court.

12. Mr. S. Dutta, learned Standing Counsel, Punjab National Bank i.e. the Respondent no.6 has submitted that the service records of Kajal Chandra Dey does not reflect that the names of the petitioners, herein, being incorporated, therein, as his legal heirs. It is further projected that there are no documents available with the bank to show that late Kajal Chandra Dey had married the

petitioner, herein. The learned Senior counsel had further submitted that on the declaratory decree being produced before the bank authorities by the original respondent no.7 i.e. Smti Shila Dey, the retirement dues of late Kajal Chandra Dey was released to her. It is further submitted that late Kajal Chandra Dey has subscribed to the contributory pension fund scheme and the amount as accumulated in the said fund has already been released to the original respondent no.7, herein, Smti Shila Dey and no further amount is due for release to any of the family members of late Kajal Chandra Dey. Accordingly, the learned senior counsel submits that no terminal benefits being due to be released in respect of the services of late Kajal Chandra Dey, the claim as made by the petitioners in the present proceedings against the Punjab National Bank would not mandate an acceptance by this Court, even if the petitioners are deemed to be the next of kin of Late Kajal Chandra Dey.

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13. I have heard the learned counsel for the parties and also perused the materials available on record.

14. The projection made in the present writ petition is to the effect that the petitioner no.2, is the wife of late Kajal Chandra Dey, while the petitioner no.1, is his daughter born out of the said wedlock. While the said contentions has been raised in the present proceedings and the same is being sought to be established basing on the birth certificate of the petitioner no.2, her educational certificate as well as the Pan Card and the Voter ID Card issued in the names of the petitioners, wherein, that the name of Kajal Chandra Dey has been reflected. The petitioners by placing reliance on the said documents seek to establish that they are the Next Of Kin of late Kajal Chandra Dey and would be entitled to be authorized the family pension and other pensionary benefits due to the family members of late Kajal Chandra Dey on account of the services rendered by him both in the Indian Air force as well as with the Punjab National Bank. This Court on perusal of the materials brought on record finds that there is nothing available which would conclusively demonstrate that late Kajal Chandra Dey had married the petitioner no.2 on 02.03.1995 and that out of the said wedlock the petitioner no.1 was so born. It is seen that the petitioners herein while lodging a FIR against the respondent no.7 and one Pralay Kanti Dey (brother of late Kajal Chandra Dey were aware of the fact that Shila Dey had instituted a Title Suit No.368/2008 before the Court of the Munsiff No.3, Kamrup, Guwahati, praying for a declaration that her husband late Kajal Chandra Dey had already passed away by drawing a presumption as available under Section 107 and Section 108 of the Indian Evidence Act, on the deceased being missing for past more than 7 years.

Page No.# 9/12 It is seen that inspite of the said fact being to the knowledge of the petitioners, herein, no steps were taken by them to have the said declaratory decree annulled by instituting appropriate proceedings in accordance with law. Although, said Kajal Chandra Dey, is projected to be missing since 2001, the petitioners have waited till 2017 to approach this Court praying for the reliefs as sought for, herein. It is seen that the petitioners had approached the respondents praying for release of the pensionary benefits due on account of the services rendered by late Kajal Chandra Dey, to them only in the year 2016. The materials brought on record not being conclusive to establish the marriage being solemnized between Kajal Chandra Dey and the petitioner no.2, herein, this Court in the present proceedings would not be in a position to accept the contentions raised in

the matter by the petitioners.

15. The petitioners ought to have approached the competent Court of civil jurisdiction for declaration to the effect that the petitioner no.2 is the wife of late Kajal Chandra Dey and that the petitioner no.1 was so born out of the said wedlock. The learned counsel for the petitioner by referring to the provisions of Section 16 of the Hindu Marriage Act, 1955, has submitted that, even if, the marriage between late Kajal Chandra Dey and the petitioner no.2 is held to be void, the petitioner no.1, being born out of such wedlock would be a legitimate child and she would be entitled to the retirement dues on account of the services rendered by her father late Kajal Chandra Dey. The said contention in view of the materials coming on record would not mandate an acceptance inasmuch as the factum of solemnization marriage between Kajal Chandra Dey and the petitioner no.2 and the birth of petitioner no.1 out of the said wedlock cannot be Page No.# 10/12 said to have been established in the present matter.

16. The learned counsel for the petitioner has further placed reliance on the decision of the Hon'ble Supreme Court in the case of Rameshwari Devi (Supra) and has contended that the Supreme Court, therein, had held that, even if, the second marriage of an employee is held to be void, the children born out of such marriage would be entitled to family pension and other pensionary benefits. This Court has closely perused the decision of Hon'ble Supreme Court in the above noted case and finds that therein, the appellant was the first wife of the deceased employee and it was contended that the 2nd marriage solemnized by the husband of the appellant with one Yogmaya Devi was void and accordingly, the children born out of the such wedlock would be illegitimate and would not be entitled a share of the pension and pensionary benefits of the deceased employee. The Hon'ble Supreme Court on consideration of the matter by noticing that the second wife has lived with the employee concerned as husband and wife, since 1963, a presumption arises that marriage of the second wife with the employee concerned was in accordance with the Hindu Rites and all ceremonies connected with a valid Hindu Marriage were performed, which the appellant, therein, was unable to refute, however, the Hon'ble Supreme Court held that the second marriage of the employee being in contravention of clause 1 of Section 5 of the Hindu Marriage Act, was a void marriage. The Hon'ble Supreme Court further held that under Section 16 of the Act of 1955, children born out of a void marriage were legitimate and accordingly proceeded to uphold the decision of the High Court involved therein, to also authorize a share of the pension and pensionary benefits to the children of the second wife. Applying the decision of the Hon'ble Supreme Court in Rameshwari Devi Page No.# 11/12 (Supra), to the facts of the present case, it is seen that in the present case the factum of marriage of the petitioner no.2 with that of Kajal Chandra Dey is not established and accordingly, it is not permissible for this Court to hold that the petitioner no.1, is infact, the daughter of late Kajal Chandra Dey.

17. In view of the above conclusion, this Court is of the considered view that the relief sought for by the petitioners in the present proceedings would not be mandated to be so granted. Having drawn the above conclusion, this Court grants liberty to the petitioners to approach the competent Court of Civil jurisdiction and to get a declaration to the effect that the petitioner no.2 is the wife of late Kajal Chandra Dey and the petitioner no.1 was born out of such wedlock.

18. In the event, such declaratory decree is issued in favour of the petitioners, herein, they would be at liberty to approach the respondent authorities raising a claim for being authorized family pension. In such an eventuality, it is provided that the petitioners or the petitioner no.1, as the case may be, would be entitled to claim family pension from the authorities of the Indian Air Force, inasmuch as, other pensionary benefits in respect of service rendered by late Kajal Chandra Dey was already released to Shila Dey, i.e. the original respondent no.7, herein, and the petitioners in the present proceedings has admitted the status of said Shila Dey as the wife of Late Kajal Chandra Dey. It is also provided that with regard to the service rendered by Kajal Chandra Dey with Punjab National Bank, no further terminal benefits being receivable, the petitioners would be entitled to raise any claim in this connection.

19. With the above observations and directions, the present writ Page No.# 12/12 petition stands disposed of.

JUDGE Comparing Assistant